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FINN GOMEZ Getty Images

PRESIDENT TRUMP, his approval rating near historic lows, made his closing pitch to voters on Monday.

Trump's aura of invincibility faces next test

With the possibility of a Democrat-led Congress, he says he'd become 'Mr. Veto.'

BY MICHAEL WILNER

WASHINGTON — Over the last decade, President Trump has steadily expanded executive power, pushing the limits of his authority and evading traditional constraints. But a Democratic takeover of Congress on Tuesday could set up one final constitutional test for the Trump era, challenging the legislative branch to reclaim its role as a check on an increasingly powerful White House.

A "blue wave" could give Democrats control of both chambers of Congress, handing them not only investigative and subpoena powers in the House, but also, through the Senate, the authority to confirm presidential appointments, pursue impeachment trials, and control legislation and federal spending.

That would historically be enough to bring a president to heel. Yet the Trump administration's broad assertion of executive privilege and politicization of the Justice Department could make oversight from a Democratic Congress sluggish — if not impossible — over Trump's final two years.

The Office of Legal Counsel has claimed that even Trump's communications with private advisors could be shielded by privilege. Independent watchdogs across the federal government, which have traditionally supported congressional oversight, have been systematically removed. And a Justice Department that historically pursued congressional criminal referrals regardless of their political implications is poised to ignore them under current leadership.

A combative administration will pose a challenge to Democratic congressional leaders, who may face internal party calls to pursue a third impeachment of the president over any number of scandals, and will probably shape debate over the coming presidential campaign season.

"Our system of checks and balances and the requirements of super majorities makes it difficult for the legislature to hold the execu-

[See **Trump,** A7]

Justices reject bid to review 20,000 ballots

Trump lawyers had sought emergency appeal over contested California votes.

BY DAVID G. SAVAGE AND KEVIN RECTOR

WASHINGTON — Acting quickly and emphatically, the Supreme Court on Monday turned down the Trump administration's bid to set aside ballots from 20,000 California voters who the administration alleges may not be citizens.

The justices dismissed the emergency appeal without comment or dissent — a rare rebuke for President Trump's lawyers.

Solicitor Gen. D. John Sauer had appealed Monday and said the court must "segregate" these California ballots before they are processed by state and local election officials and counted.

The appeal went to Justice Elena Kagan, who oversees the 9th Circuit Court of Appeals. In the normal course, she could have asked California's lawyers to respond.

Instead, the court issued a one-line order: "The application for injunction pending appeal presented to Justice Kagan and by her referred to the Court is denied."

The dismissal continued a string of losses in election-related litigation for the Trump administration in recent days and marked a substantive rebuke to a signature campaign by the president and his supporters to force the administration's will on a state election as votes are being counted.

It was cheered by California leaders. "Glad SCOTUS agrees that Trump's attacks on California's elections are BASELESS and UNCONSTITUTIONAL," Sen. Alex Padilla (D-Calif.) wrote on X.

"This latest decision should put an end to the Administration's attempt to disrupt California's elections through emergency court orders. But our work is not over," California Atty.

[See **Justices,** A6]

Poll finds broad fear of vote-count interference

Democrats, minorities are especially concerned

BY CLARA HARTER

Nearly two-thirds of California voters are worried that the Trump administration may try to halt the vote count early, stoking disquieting levels of election anxiety on the eve of the midterms, a new poll shows.

Those fears arise as the Justice Department continues its aggressive efforts to challenge or wrest control over state voting processes, including threatening to prosecute uncooperative elections officials in California, after years of baseless claims of widespread election fraud by the Republican president.

Among California voters, 63% worry that the federal government may attempt to stop the counting of votes in California and other states in the days following Tuesday's election, according to the poll from the UC Berkeley Institute of Governmental Studies, co-sponsored by The Times. Around half of voters — 49% — are not confident that the state's election will be free of federal interference, the survey found.

"Both of the items, together, I think should raise alarms for threats against democracy in California," said Matt Barreto, director of the UCLA Voting Rights Project.

California voters also have grievances with the state's ballot propositions, a slate of 14 measures that include new taxes on billionaires and funding for cancer research. More than 8 in 10 of the state's likely voters said that this year's propositions were worded in a way that made them hard to understand and that special interest groups have too much influence over which propositions appear on the ballot.

Those concerns were shared across partisan lines, unlike how Californians felt about the threats posed to the integrity of elections by the Trump administration.

[See **Poll,** A6]

Closing message to voters: Admire the pool

The president gives a final election speech that focuses on his capital renovations.

BY ANA CEBALLOS

WASHINGTON — After spending a month asking voters to treat the midterms as a vote on him, President Trump closed his month-long campaign sprint on Monday sounding like a man bracing for defeat.

"For some reason, the sitting president doesn't win the midterms," Trump said. "But we gave this a very strong shot."

Still, Trump said he hopes Americans are "ready to do the right thing" and insisted that Republicans could hold on to Congress if voters who buoyed his 2024 victory turn out again. He urged voters to do so, calling this election "the most important midterm, I believe, in our lifetime." The alternative, he warned, will be a "radical agenda" in Washington as he finishes his last two years in office.

"With your vote, we will decide if these extremists will be given power or not," Trump said, claiming that the Democratic Party has "nominated the most extreme and dangerous slate of candidates in American history."

The message capped a dizzying campaign push in which Trump made himself the focus of the midterms as he held dozens of rallies in mostly Republican states. In those rallies, he promised $5,000 checks and brighter days ahead to Americans who vote to keep Republicans in control of Congress. But heading into Tuesday, most polls are predicting a Democratic wave amid a voter backlash to Trump's handling of the economy and a war in Iran.

Democrats are heavily favored to retake power of the House and are leading in all the key states that would be the likeliest to decide which party will control the Senate, according to a New York Times/Siena University poll released Sunday. But polling can be flawed, as evidenced by forecasts that underestimated Trump's support in the 2016 and 2024 elections.

Trump's approval rating is near historic lows this time around, the poll found. A separate NBC News poll released Sunday found nearly two-thirds of voters are seeking a change from the direction Trump is leading the country.

This year, early voting has already seen strong

[See **Message,** A7]

Newsom pushes bigger film, TV tax credit

BY CERYS DAVIES AND STACY PERMAN

Gov. Gavin Newsom on Monday called for a significant expansion of the state's film and TV tax incentives in the face of mounting evidence that producers are fleeing California in search of cheaper locales.

Newsom said in a statement Monday that he favors expanding California's current Film and Television Tax Credit Program from $750 million to at least $1 billion annually.

Notably, Newsom's proposal would include credits for actors and other above-the-line talent and extend the tax credit through 2040, according to the statement. That would make California's program more competitive with those of other states such as Georgia and New York that allow tax credits to offset the cost of actors' salaries.

If approved by the state Legislature, it would be the country's largest capped film and TV tax credit, Newsom's office said.

"We're the capital of entertainment and we're going

[See **Filming,** A10]



JASON ARMOND Los Angeles Times

A PROPOSAL aims to keep more production in the state. Above, on a Dhar Mann Studios set in Burbank.

Last call proposed for new karaoke rooms

L.A. officials to weigh a moratorium on permits in Koreatown as complaints mount.

BY SUHAUNA HUSSAIN

To understand the remarkable cultural force of Korean immigrants in Los Angeles, just listen to the music.

Karaoke has been a central part of Korean American nightlife since the immigration wave began in the 1970s. Groups gather in private rooms lined with flashing lights and TV monitors, pick up the microphone and sing with abandon into the early morning hours.

But is there such a thing as too much crooning?

Los Angeles city officials will, in the coming months, weigh a proposal to halt new permits for karaoke bars in Koreatown, amid complaints from residents and businesses that some establishments selling alcohol are operating out of bounds.

City Councilmember Heather Hutt introduced a motion last week to bar the city from greenlighting new karaoke rooms for 45 days in the neighborhood's bustling commercial and cultural corridor along Olympic Boulevard, with the option of extending the ban for a year. The proposal would also set aside $75,000 for the LAPD to investigate businesses operating without a license.

"We have seen the entertainment and nightlife grow in the area and want to ensure this growth is more thoughtful and creates a safe environment for everyone," Hutt's office said in a media statement.

She said that as construction of new high-rises and apartment complexes has revved up in Koreatown, her office has fielded more complaints from constitu-

[See **Karaoke,** A10]



KYUSUNG GONG Associated Press

CHARGING TOWARD 0-17

A winless season looks as if it's on the table for Charlie Kolar (88) and the Chargers' anemic offense, Mirjam Swanson writes. **SPORTS, B10**

Key Senate, House races

Will a 'blue wave' surface? Here are the contests to watch, possible outcomes. **NATION, A4**

State girds for federal meddling

Newsom and others warn of potential ballot seizures and prepare for court fights. **NATION, A7**

Mexican schools bar cellphones

The ban is part of the government's effort to limit children's and teens' use of electronic devices. **WORLD, A2**

Can renters use balcony solar?

It's unclear if landlords in California will have to allow the plug-in panels. **CALIFORNIA, B1**

Weather
Mostly sunny.
L.A. Basin: 76/56. **B6**

Markets **A11**
Opinion Voices **A12**

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